



U.S. Department
of Transportation

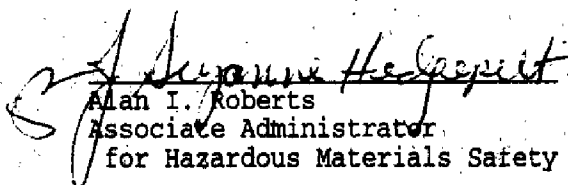
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10489 (EXTENSION)
SECOND REVISION December 30, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10489 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 28 1995

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

March 21, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
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Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 30 1991

DOT-E 10489
(SECOND REVISION)

1. U.S. Department of Defense, Washington, DC is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages described herein of ammunition for cannon with smoke projectile for transportation in commerce subject to the limitation and special requirements specified herein. This exemption authorizes the transportation of ammunition for cannon with smoke projectile as a Class B explosive and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on applications from the Department of Defense dated December 24, 1990 and March 7, 1991, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIAL (Descriptor and class). Cartridge, 60mm, smoke, XM722; Cartridge, 81mm smoke, WP, M375A3; Cartridge, 81mm, smoke, WP, M375A2, or Projectile, 155mm, smoke, WP, M825, classed as Class B explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ammunition for cannon with smoke projectile, Class B explosive.

5. REGULATIONS AFFECTED. 49 CFR 172.101.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, and cargo aircraft only on carriers authorized by exemption to carry Class A or Class B explosives.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as authorized in 49 CFR 173.54.

8. SPECIAL PROVISION.

a. A copy of this exemption must be carried aboard each vessel, aircraft, or motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

c. Motor vehicles used to carry devices authorized under this exemption must be DOD approved Class A and Class B motor vehicle munition carriers.

d. For shipments by cargo vessel, the explosive items covered by this exemption shall be assigned to Coast Guard Stowage Class II-D.

9. REPORTING REQUIREMENTS: Any incident involving fire, explosion or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. January 31, 1993.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 30 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: USCG, FAA, FHWA, FRA.